

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 3, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03032

ZF SPV, LLC v. BYRD, et al.

ZF SPV, LLC’S MOTION TO LIFT STAY OF WRIT OF POSSESSION

The motion is denied. The parties’ settlement agreement (Kornbluh Declaration, Exhibit C) describes that the stay may be lifted and possession granted to plaintiff on default by buyers [“If escrow does not close pursuant to the terms of the executed RPA by reason of any Default by Buyers or failure of Buyers to timely remove any listed contingency, or mutual cancellation....”]. However, plaintiff has presented no evidence of default, only that escrow failed to close by June 15, 2026.

Further, due to the underlying facts of this case and the former homeowners’ allegations of financial elder abuse and unfair business practices by ZF SPV, LLC, the Court is not inclined to lift the stay without resolution of those claims in arbitration. Plaintiff’s objections to the Declaration of Stacie L. Power are immaterial to the Court’s ruling.

No. 26CV01116

CITY OF SANTA CRUZ v. TAPIA

PLAINTIFF’S MOTION TO SEAL

The motion is granted.

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 3, 2026 TIME: 8:30 A.M.

This is a petition seeking a judicial determination pursuant to Penal Code section 18250 regarding disposition of weapons following defendant Miguel Tapia's arrest for domestic battery. Plaintiff, City of Santa Cruz, seeks to seal its memorandum of points and authorities supporting its petition for an order for forfeiture of defendant's firearms, ammunition, and related accessories, as well as the declarations of two police officers. The request is based upon the inclusion of confidential victim and witness information in those pleadings.

The Court finds the request satisfies the provisions of Cal. Rule of Court, rule 2.550(d): there exists an overriding interest that overcomes the right of public access to the record; the overriding interest supports sealing the record; a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; the proposed sealing is narrowly tailored; and no less restrictive means exist to achieve the overriding interest.

No. 25CV04045

WELLS FARGO, N.A. v. DIAZ

(UNOPPOSED) PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT

The unopposed motion is granted. Judgment will be entered in favor of plaintiff.

I. BACKGROUND

This is a limited jurisdiction collection matter filed by plaintiff Wells Fargo, N.A. against defendant Juan C. Diaz seeking \$17,234.77 for an unpaid credit card debt. There are two causes of action for breach of contract. Defendant, who is represented by counsel, filed an answer and affirmative defenses. Despite proper service, defendant did not oppose the motion.

II. UNDISPUTED MATERIAL FACTS

Defendant applied for and was issued a Wells Fargo credit card ("Subject Account") ending in 4924. (Plaintiff's Separate Statement of Undisputed Material Facts ("UF"), No. 1, 15.) Plaintiff sent defendant the credit card along with the written Customer Agreement associated with the credit card. (UF 2, 16.) Defendant accepted the terms of the written agreement when they used the Wells Fargo Credit Card. (UF 3, 17.) Pursuant to the terms of the Customer Agreement associated with the card, plaintiff would extend credit to defendant whereby defendant could charge goods, services, or obtain cash advances on the credit line (UF 4, 18.) In exchange, defendant was to repay the principal amount lent plus applicable interest and finance charges. (UF 5, 19.)